

Data Protection Policy

How we collect, use and protect personal information

15-17 Irlam Road, Bootle, Liverpool, L20 4AE · Alternative Provision for Ages 5–25

ADOPTED POLICY

This policy has been formally adopted by L-Fit Pathways' co-directors and is in effect from the date shown below. Any section still shown in [square brackets and amber text] is organisation-specific detail that remains to be confirmed and inserted - it does not affect the rest of the policy's validity but should be completed as soon as possible.

Version: 1.0 (Adopted)

Date Adopted: 16 September 2026

Next Review Due: 16 September 2027 (or sooner following any legislative change or safeguarding incident)

1. Statement of Intent

L-Fit Pathways is committed to processing personal data, including special category data relating to health, SEND and safeguarding, lawfully, fairly and transparently, in accordance with UK GDPR and the Data Protection Act 2018.

2. Data Controller

L-Fit Pathways is the data controller for personal data collected through referrals, enquiries and provision delivery.

[OUTSTANDING - Adam to confirm ICO registration number (or registration is in progress)]

Contact for data protection queries: Adam Byrne, adam.byrne@lfitpathways.com.

3. What Data We Collect

Depending on the referral route, we may collect:

- Contact details of parents/carers, referring professionals and young people
- Date of birth, school/college setting, year group
- EHCP status and content, SEND information, additional support needs
- Safeguarding information, including risk factors and current concerns
- Consent status for referral and, where applicable, for photography/media use
- Session attendance and progress records

4. Lawful Basis for Processing

- Consent — for direct parent/carer referrals and for photography/marketing use
- Legal obligation / public task — for local authority and EHCP-funded referrals
- Vital interests — for safeguarding disclosures where a child is at risk of harm

Special category data (health, SEND, safeguarding information) is processed under UK GDPR Article 9, principally on the basis of safeguarding and social protection, and explicit consent where applicable.

5. Data Storage & Security

Referral and safeguarding records are stored on a secure, password-protected, access-controlled cloud-based system. Access is restricted to the Co-Directors and any staff member directly involved in a young person's provision.

Physical records, where used, are stored in a locked location accessible only to the DSLs.

6. Data Sharing

Personal data is shared only where necessary and lawful, including with referring schools, colleges, local authorities and, where safeguarding requires it, children's social care and the police. Data is never sold or shared for marketing purposes without explicit consent.

7. Retention

Referral and provision records are retained for the duration of provision plus 7 years (or in line with the commissioning local authority's record-keeping requirements, where longer). Safeguarding records are retained in line with statutory safeguarding record-retention guidance.

8. Individual Rights

Parents, carers and young people (as age-appropriate) have the right to access, correct, or request erasure of personal data held, except where retention is required for safeguarding or legal purposes. Requests should be made to the DSLs and will be responded to within one calendar month.

9. Data Breach Procedure

Any suspected data breach is reported to a DSL immediately. Where a breach poses a risk to individuals' rights and freedoms, it will be reported to the Information Commissioner's Office (ICO) within 72 hours, in line with UK GDPR.

10. Photography & Media Consent

Photography or video of young people for promotional or training purposes is only taken with specific written parental/carers consent, recorded against the referral file, and can be withdrawn at any time.

11. Monitoring & Review

This policy is reviewed annually or following any change to data protection legislation or guidance.

Policy adopted on: 16 September 2026 — Next review due: 16 September 2027